

tions, amendments and repeals, which, since the compilation of 1807, have been constantly accumulating, not only upon that system, but upon themselves. It is impossible to go through with a minute examination of the body of existing laws, without feeling a strong inclination to see a judicious revision of the whole; and yet there are reasons which render the expediency of such a measure very questionable. The apparent necessity of such a resort, I have endeavoured, as far as possible, to supersede. Whoever will examine the chapters on the subjects of judicial proceedings—the jurisdiction of justices—publick lands—jails and jailers—marriage and divorce—the general list—highways and bridges—sessions of courts, and schools, will not fail to feel the force of the above intimation, and perceive the difficulty of accomplishing the purpose at which I have aimed. I cannot, however, feel much confidence that I have succeeded in doing justice to this most important branch of the subject. Yet I have endeavoured to accomplish, in this respect, all that my humble capacity and limited time would permit. I have made the references, for the most part, to chapters and numbers, and sections, rather than to pages; and, for the purpose of facilitating this mode of reference, have placed the number of each chapter at the head of the internal margin of each page.

I have been particular, among the numerous references which will be found in the margin, to note the repeal of sections, or parts of sections of acts. This part of the labour has, not unfrequently, been attended with much perplexity, owing to the manner frequently adopted, of disposing of laws by sweeping enactments; such as, that all acts and parts of acts, “inconsistent with the provisions of this act,” or “coming within the purview of this act,” or “so much of any former law as is hereby altered or supplied,” be, and the same is hereby repealed. It will be perceived, that the legitimate application of such general repeals must frequently be a matter of considerable difficulty. In all cases of doubt as to the repeal of any act or part of act, I have left it unnoted as being repealed. A case of this kind occurs in the *first* and *second* sections of an act relating to the government of the state prison, which will be found in chapter 30, no. 2. By examining this, and the subsequent acts on the same subject, it will be seen that certain powers given to the superintendent appointed *by the visitors*, though necessary to the government of the prison, have not, in the frequent mutations which this branch of our laws has undergone, been transferred to the warden nor superintendent appointed *by the legislature*, under the existing law. If, for example, the warden look for the power to command aid in quelling disorders, &c. among the prisoners, he will